

**RESIDENTIAL TENANCIES ACT, 2006
LANDLORD AND TENANT BOARD**

File No.: _____

B E T W E E N :

KELANI MAEMUNAT and JOSEPH OLADIMEJI

Applicants (Tenants)

– and –

**2866747 ONTARIO INC., o/a WEBER RENTAL PROPERTIES
(c/o SETH FAIK)**

Respondent (Landlord)

Rental Unit: Unit 2 – 360 Prospect Avenue, Kitchener, Ontario N2A 1E1

Landlord's address for service (per s. 3 of the tenancy agreement): 2315 Fischer Hallman Road,
New Dundee, Ontario N0B 2E0

TENANT'S WRITTEN SUBMISSIONS

(Application under section 29(1) of the Residential Tenancies Act, 2006 — Form T6)

I. OVERVIEW

These are the Tenants' written submissions on their application under section 29(1) of the Residential Tenancies Act, 2006 (the "Act" or "RTA"), alleging that the Respondent breached the maintenance obligation in section 20(1).

The application concerns recurring water intrusion through an interior wall of the rental unit, the resulting moisture-related deterioration and mould — the existence of which the Respondent acknowledged in writing — together with a related electrical fault and an appliance defect, during the tenancy at Unit 2 – 360 Prospect Avenue, Kitchener.

The Tenants notified the Respondent of each condition in writing and contemporaneously. The Respondent had actual knowledge of the conditions and, although some steps were taken, the water intrusion and the resulting deterioration persisted and spread within the unit, and the source of the water was never identified or remedied. The conditions ultimately led the Tenants to end the tenancy and secure alternate housing. The Tenants seek a rent abatement, compensation, damages, and such further relief as the Board considers just.

II. APPLICABLE LAW

Section 20(1) of the Act provides:

“A landlord is responsible for providing and maintaining a residential complex, including the rental units in it, in a good state of repair and fit for habitation and for complying with health, safety, housing and maintenance standards.”

The obligation imposed by section 20 is continuous. It is not discharged merely by acknowledging a complaint, or by attending once: it requires the landlord to take reasonable and effective steps to investigate and remedy the underlying condition.

Standard of review — reasonableness. The governing authority is *Onyskiw v. CJM Property Management Ltd.*, 2016 ONCA 477. The Court of Appeal rejected a strict “any disruption is a breach” approach in favour of a contextual assessment of whether the landlord acted reasonably in all the circumstances. The Board applies the same contextual approach in its Interpretation Guideline 5 (Breach of Maintenance Obligations). The question, therefore, is not whether the Respondent communicated or attended, but whether the response was reasonable and effective. Where a condition persists and worsens after notice and after an initial attendance, the response does not meet the reasonableness standard.

Housing standards. Section 20(1) also obliges the landlord to comply with “health, safety, housing and maintenance standards.” Persistent water penetration and moisture accumulation in interior walls and ceilings are the type of conditions addressed by municipal property standards requirements concerning water penetration and dampness, and create conditions conducive to mould growth, deterioration of building materials, and potential health risks. Water penetration into an interior wall is not merely cosmetic; it is a standards issue. The presence of such conditions supports a finding that the rental unit was not maintained in a good state of repair within the meaning of section 20.

Limitation. An application under section 29(1) must be made within one year after the day the conduct giving rise to it occurred (section 29(2)). The Tenants’ principal claims — the water intrusion and mould first reported in November 2025, and the appliance defect of February 2026 — are within time. Interpretation Guideline 5 confirms that where a maintenance breach is ongoing or recurring, rather than a single event, the breach occurs over a period of time and the limitation period runs from the date the repair is completed or the standard is complied with — not from the date of first notice.

III. BACKGROUND AND PARTIES

The Applicants, Kelani Maemunat and Joseph Oladimeji, were the tenants of the rental unit. The Respondent, 2866747 Ontario Inc., operating as Weber Rental Properties (c/o Seth Faik), was the landlord named in the standard form of lease and in the Form N11. Mr. Faik conducted all correspondence with the Tenants on the landlord's behalf.

The parties entered into a standard form of lease executed January 14, 2025 (Exhibit L-1). The tenancy commenced February 1, 2025. The monthly rent was \$1,800 (the last-month-rent deposit was also \$1,800). The tenancy ended by agreement (Form N11) effective April 30, 2026, and the Tenants vacated on that date. As former tenants, the Applicants bring this application within one year of the conduct complained of, as permitted by section 29 of the Act.

At the outset of the tenancy the Respondent expressly accepted responsibility for repairs: "We are responsible for fixing appliances" (Exhibit T-1, January 14, 2025).

The Tenants rely on contemporaneous email correspondence between the parties, photographs, and video recordings. The documents are indexed at Schedule A and the chronology is set out at Schedule B.

IV. WATER INTRUSION THROUGH THE INTERIOR WALL (PRIMARY ISSUE)

Notice. On November 7, 2025 at 9:16 p.m., the Tenants notified the Respondent of water entering the unit through an interior wall and attached a video (Exhibits W-1 and W-2):

“Find attached the video of water coming from the wall ... The first time we saw it was around March when we moved in but we cleaned it. Not until last week we saw this again, we cleaned it.”

A further message the same evening reported the water was “all over,” notwithstanding that the Tenants were running a dehumidifier (Exhibit W-3).

Acknowledgement. The following morning, November 8, 2025 at 9:53 a.m., the Respondent acknowledged the complaint and undertook to act (Exhibit W-4):

“I will try to find someone to come this weekend. If not, I will get someone for Monday.”

Worsening condition. On November 10, 2025 at 5:04 p.m., the Tenants reported that the condition had spread (Exhibit W-5):

“It has spread to the living room and the closet too. Also molds in the washroom attached is a picture.”

Contractor attendance and continued deterioration. The Tenants candidly acknowledge that the Respondent arranged for a contractor (“Ben”) to attend regarding the leak. On November 10, 2025, the Tenants wrote that “Ben came over today in the morning and we spoke about the leak thing ... we’ll do that and see if it happens again,” while also advising that they “do need some help with the mold thing as it looks like it’s getting worse everyday” (Exhibit M-2).

The fact that an attendance occurred does not, by itself, discharge the obligation in section 20. Under Onyskiw, the question is whether the response was reasonable and effective. Here the water intrusion had been observed since the Tenants moved in (around March 2025), recurred in November 2025, was documented by video, was the subject of a single contractor attendance, and then spread to additional rooms of the unit. The continued spread of the condition after that attendance is itself evidence that the underlying source of the water was not identified and effectively remedied.

V. MOISTURE-RELATED DETERIORATION AND MOULD

The Tenants reported mould in the washroom on November 10, 2025 (Exhibit W-5; photograph at Exhibit M-1) and that it was worsening daily (Exhibit M-2).

The significance of mould is not merely cosmetic. Mould indicates the presence of ongoing moisture conditions that, if left unresolved, can continue to damage building materials and interfere with a tenant's ordinary use and enjoyment of the premises. Its presence in this unit was a symptom of the same unresolved water intrusion described above.

The Tenants acknowledge that the mould is documented by photographs and by the parties' correspondence rather than by formal testing. They submit, however, that no testing is required where, as here, the landlord's own correspondence acknowledges the existence of mould (see Section VI below), the mould is visible in photographs, and it is connected to a documented water intrusion through the wall — a condition arising from the building and within the Respondent's maintenance responsibilities, not attributable to ordinary tenant use.

VI. THE LANDLORD’S ADMISSION REGARDING MOULD

The Respondent’s own words establish the existence of the mould, his knowledge of it, and his understanding that the condition was ongoing. On November 12, 2025 at 2:14 p.m., the Respondent wrote (Exhibit M-3):

“I will see when Ben can come back for bathroom. Please make sure you are always using the fan when showering as not using will cause further mold.”

This single communication contains three admissions. First, the Respondent acknowledged that mould existed — he did not dispute the Tenants’ report or the photograph; he undertook to send his contractor “back for bathroom.” Second, the words “further mold” acknowledge that the condition was active and ongoing as of November 12, 2025. Third, by directing the Tenants’ conduct prospectively, the Respondent acknowledged that the mould was a continuing concern requiring management — not a trivial or resolved matter.

Where a landlord’s contemporaneous correspondence concedes the existence of an ongoing condition, the only live questions are responsibility and remedy. The Respondent’s attribution of the mould to shower ventilation does not assist him: the mould was reported in the same correspondence as the spreading water intrusion, and there is no evidence before the Board that the unit’s ventilation was inadequate by reason of any act or omission of the Tenants, who will testify that they used the unit in an ordinary, responsible manner.

VII. PHOTOGRAPHIC AND VIDEO EVIDENCE

The Board is invited to review the following visual evidence, which is contemporaneous with the written complaints and was transmitted to the Respondent directly:

- (a) **Exhibit W-2 (video, November 7, 2025).** The video transmitted with the first written complaint, described by the Tenants in that same contemporaneous email as “the video of water coming from the wall” (Exhibit W-1). It is direct evidence of the intrusion itself, not merely of its after-effects.
- (b) **Exhibit M-1 (photograph, November 10, 2025).** The photograph transmitted with Exhibit W-5 depicts dark, clustered mould growth concentrated at the junction of the washroom ceiling and wall, directly above the shower. The growth is plainly visible, established, and concentrated at a ceiling–wall joint — a location consistent with the Tenants’ observations of water entering through the wall, and not with ordinary surface condensation that routine cleaning would address.
- (c) **Exhibit W-6 (photograph).** A photograph of the affected interior wall depicting horizontal staining tracks consistent with water running along and down the wall surface. The staining pattern corroborates the Tenants’ written description of water “coming from the wall” and the video at Exhibit W-2.
- (d) **Exhibit W-7 (video).** A video taken during the tenancy panning across the affected wall, depicting vertical drip-stain trails running down the painted surface. The drip pattern is consistent with repeated episodes of water descending the wall from above, and is not consistent with a single, isolated spill.
- (e) **Exhibit V-3 (video — affected closet).** A video of the affected closet and surrounding area, depicting the Tenants’ garments, including jackets, stored inside the closet; staining along the closet door trim; blistering of the painted shelf surface; and branching water-stain trails running down the adjacent wall. The garments visible in this video were subsequently disposed of as a result of moisture and mould damage, and ground the property-replacement claim at Section XVII(B).
- (f) **Exhibits V-1 and V-2 (videos).** Condition videos taken at various times during the tenancy, depicting the kitchen, countertop and backsplash, hallway, and other areas of the unit. These recordings document the state of the unit contemporaneously and will be relied upon at the hearing, including in response to any allegation by the Respondent concerning the condition of the unit.

(g) **Exhibits G-1 to G-5 (dated photographs, February–April 2026).** Contemporaneous photographs taken during the gap in written correspondence, each bearing the device date, establishing that the conditions remained visible and untreated through to the end of the tenancy: (i) G-1, February 20, 2026 — water staining along the ceiling–wall junction directly above the doors of a second closet, to which the water had by then spread (distinct from the closet shown at Exhibit V-3 — demonstrating that the moisture migrated to a further area of the unit); (ii) G-2, February 20, 2026 — a mould-removal / cleaning product the Tenants were using to manage the condition themselves; (iii) G-3, March 20, 2026 — vertical staining trails running down the door frame; (iv) G-4, April 4, 2026 — further staining on the door frame and adjacent wall; and (v) G-5, April 4, 2026 — staining consistent with water on the wall surface, twenty-six days before the Tenants vacated.

These dated photographs are significant. They demonstrate that the conditions the Respondent was told of in November 2025 were still present, visible, and unremedied in February, March, and April 2026 — confirming that the reduction in written complaints after November reflected the Tenants’ resignation, not the resolution of the problem (see Section XII).

Together, the visual record shows active water entry, distinctive staining on the wall, established mould growth at the ceiling line, and the persistence of those conditions on dated photographs through to move-out — a progression consistent with the written chronology and inconsistent with any suggestion that the conditions were minor, cosmetic, transient, or caused by the Tenants’ use of the unit.

VIII. RELATED ELECTRICAL FAULT (CORROBORATION)

The electrical fault is relied upon as corroboration of the moisture problem and as part of the maintenance history of the tenancy. On March 25, 2025, the Tenants reported that “the sockets in the kitchen suddenly stopped working over the weekend” (Exhibit E-1). On March 27, 2025, the Respondent replied that “the outlets ... will turn off if exposed to water. There is a reset button on the outlet” (Exhibit E-2) — an explanation that, on the Respondent’s own theory, links the fault to water exposure within the unit. The proposed remedy did not resolve the problem: on September 23, 2025, the Tenants advised that “the outlet that stopped working has no ‘reset’” (Exhibit E-3), and there is no evidence in the correspondence that the outlets were ever repaired. To the extent this deficiency remained unrectified, it remains within time on the ongoing-breach approach in Guideline 5; in any event, the principal claims are within time and the Board need not decide the point.

IX. APPLIANCE DEFECT — OVEN BURNER (INEFFECTIVE REPAIR; STILL UNREMEDIED)

On February 16, 2026, the Tenants reported that “one burner of the oven stopped working” and that the oven displayed an error code and an audible alarm “every 10 seconds,” with photograph and video (Exhibits A-1 and A-2). The Respondent provided troubleshooting the same afternoon (Exhibit A-3), and the Respondent’s contractor attended the following day (Exhibit A-4).

Although the contractor attended, the Tenants’ evidence is that the burner was not repaired. The contractor inspected the oven and directed the Tenant to purchase a part herself to attempt the repair; he did no effective work on the burner. The audible alarm ceased not because the oven was fixed, but because the Tenant herself reset the appliance to silence it. The Tenant Joseph Oladimeji’s message of February 17, 2026 (Exhibit A-4) was sent in the context of his objection to the contractor having entered the unit, and should not be read as confirmation that the burner was repaired.

The affected burner remained inoperable through to the end of the tenancy and, on the Tenants’ evidence, remains inoperable: the Tenant returned to the unit in or about late May 2026, with the permission of the current occupants, and observed that the same burner still does not work (a photograph taken on that occasion is available). The oven defect is therefore a further instance of the pattern at the heart of this application — an attendance that did not result in an effective repair (Onyskiw; Guideline 5) — and is not relied upon as a resolved matter.

The Tenants acknowledge that they hold no documentary record of what the contractor said about the burner, and that this aspect rests on the Tenants’ direct testimony; the post-tenancy observation is offered as corroboration that the defect was never remedied, while recognizing it post-dates the tenancy.

X. ACTUAL KNOWLEDGE

There can be no genuine dispute that the Respondent had actual knowledge of each condition: he replied directly to the relevant communications (Exhibits W-4, M-3, E-2 and A-3). The issue before the Board is therefore not notice, but whether the Respondent's response satisfied the obligation imposed by section 20. The Tenants submit that it did not.

XI. THE RESPONSE WAS NOT REASONABLE OR EFFECTIVE

The Tenants do not say that the Respondent did nothing. They say that, judged against the reasonableness standard in Onyskiw and Guideline 5, the response to the water intrusion and resulting deterioration was neither reasonable nor effective. The condition had been present since move-in; it recurred; it was reported with supporting video; it was the subject of a single contractor attendance; and it then spread to additional rooms of the unit. A reasonable and effective response would have identified and remedied the source of the water entering through the wall. On the documentary record, that did not occur.

Failure to investigate. The issue is not simply that mould existed. The issue is that once notified of mould and active water intrusion — and having acknowledged both in writing — the Respondent failed to investigate the source of the condition. No moisture testing, no opening of the affected wall, no roof or plumbing inspection, and no mould assessment is disclosed anywhere in the record. Under the reasonableness standard in Onyskiw, a landlord confronted with water entering through an interior wall must, at minimum, take reasonable steps to find out where the water is coming from. On this record, that never happened. The Respondent cannot satisfy the reasonableness standard simply by arranging attendance: the evidence must establish what was investigated, what was discovered, what was repaired, and whether the source of the water intrusion was eliminated.

Adverse inference. The Respondent has produced no inspection report, contractor report, invoice, remediation record, mould assessment, or any other documentation demonstrating that the source of the water intrusion was identified or repaired, or that the mould was remediated. Once the Respondent asserts that the issue was investigated or repaired, the relevant records — what investigation was conducted, what repairs were undertaken, who performed them, and when they were completed — would be uniquely within the Respondent's possession. No such evidence has been produced. The absence of any such evidence supports the inference that no effective investigation or remediation ever occurred, and the Board is asked to draw that inference.

The condition persisted after attendance. The strongest evidence that the Respondent's response was ineffective is the condition of the unit itself. The dated photographs and videos taken in the months after the contractor attendance (Exhibits G-1 to G-5, W-7, V-1 to V-3) demonstrate that the staining, moisture damage, and mould remained visible and continued to spread. Had the underlying source been properly identified and repaired, one would expect the condition to improve; instead it persisted, and worsened, through to the end of the tenancy. Persistence after attendance is itself proof that the attendance did not produce an effective repair.

XII. THE MAINTENANCE DEFICIENCIES ULTIMATELY CAUSED THE TERMINATION OF THE TENANCY

The Tenants did not leave the rental unit because they wished to move. They left because the unit's condition gave them no reasonable alternative. The progression is documented:

Date	Event
~March 2025	First signs of water at the wall, observed at move-in and cleaned by the Tenants (Exhibit W-1).
Nov 7, 2025	Active water intrusion reported with video; water “all over” despite a dehumidifier (W-1, W-2, W-3).
Nov 10, 2025	Condition spreads to the living room and closet; mould in the washroom (W-5, M-1).
Nov 10, 2025	Single contractor attendance; mould “getting worse everyday” (M-2).
Nov 12, 2025	Respondent acknowledges mould and promises follow-up (M-3). No documented repair follows.
March 2026	Tenants and Respondent sign Form N11 agreement to end the tenancy.
Feb 20, 2026	Dated photographs: staining at the ceiling above the closet; Tenants self-cleaning with a mould product (G-1, G-2).
Mar 20, 2026	Dated photograph: staining trails down the door frame (G-3).
Apr 4, 2026	Dated photographs: staining and water on the door frame / wall, 26 days before move-out (G-4, G-5).
Apr 30, 2026	Tenants vacate and relocate; Joseph Oladimeji takes unpaid leave for the move (F-2).

The Tenants will testify that after November 2025 the source of the water was never identified or repaired; that the mould and moisture-damaged areas were never remediated; that they lost the ordinary use of the affected closet and portions of the living room and washroom; and that they were unwilling to continue living, and having their belongings, in a unit with active moisture intrusion and visible mould. It was in those circumstances that they agreed to end the tenancy effective April 30, 2026 and secured alternate housing at a higher monthly rent.

The Respondent may note that there were fewer written complaints after November 2025. The Tenants submit that this reflects resignation rather than resolution. By that point, the condition had already been reported repeatedly, documented by photographs and video, acknowledged by the Respondent, and unsuccessfully addressed. The issue was not that the Tenants stopped reporting the condition; it was that the condition remained unresolved. The absence of additional written complaints should not be interpreted as resolution of the condition: the dated photographs at Exhibits G-1 to G-5 (February, March and April 2026) show that it remained visible and unresolved until the tenancy ended.

The Respondent cannot rely on the consensual form of the termination (Form N11) to obscure the cause of it. The N11 was the mechanism by which the tenancy ended; it was not the reason the

tenancy ended. The Tenants did not agree to terminate because the problems had been resolved; they agreed to terminate because the problems remained unresolved. Where unrectified maintenance deficiencies leave tenants no reasonable choice but to leave, the termination is a consequence of the breach, and the costs of moving and the rent differential at replacement accommodation flow directly from it. This causal connection supports the moving costs, the rent differential, and the scale of the abatement sought below.

XIII. IMPACT ON THE TENANTS

The documented record itself establishes a sustained impact on the Tenants' daily life in the unit. The Tenants cleaned up water intrusion beginning at move-in (Exhibit W-1: "we cleaned it"). They purchased and continuously operated a dehumidifier at their own expense in an attempt to manage the moisture (Exhibit W-3). They continued to clean the affected areas themselves through to move-out, having concluded the Respondent would not act — a course documented in the dated photographs (Exhibits G-1 to G-5), including the cleaning product visible at G-2. They monitored mould that was, in their contemporaneous words, "getting worse everyday" (Exhibit M-2), in the washroom they had to use daily, directly above the shower (Exhibit M-1). The condition spread into their living room and closet, where their belongings were kept (Exhibit W-5).

The Tenants will supplement the documentary record with oral evidence of the persistent damp odour in the affected rooms, the loss of ordinary use of the affected areas, the recurring labour of cleaning and monitoring the conditions, and their anxiety about prolonged exposure to mould in their bathing area. These matters were lived daily over approximately six months and went well beyond ordinary inconvenience. They ground both the abatement and the modest general damages sought below.

Loss of use. The rental unit consisted of living space, storage space, and washroom facilities for which the Tenants paid full rent. The closet affected by moisture could no longer be used normally for storage. The washroom contained visible mould directly above the shower. The living room became affected by the spread of the moisture condition. The Tenants therefore paid full rent, every month, while receiving less than the full benefit of the premises. This loss of use directly supports the abatement sought in Section XVII.

Health concern. While the Tenants do not allege any diagnosed medical condition arising from the mould, they were reasonably concerned about prolonged exposure to moisture and mould growth in a bathroom used daily. That concern was heightened by the ongoing nature of the condition and the absence of any meaningful remediation.

The Tenants also experienced persistent, sleep-depriving noise from the unit above throughout the tenancy, which is the subject of a companion application (Form T2) intended to be heard together with this application. The maintenance conditions described above were the primary reason the Tenants left; the noise was a further contributing factor. The Tenants do not claim their moving costs or rent differential in the companion application — those amounts are claimed once, here. Taken together, the unremedied maintenance conditions and the noise rendered the unit untenable and made the decision to relocate a reasonable one rather than a voluntary move.

XIV. RELIABILITY OF THE DOCUMENTARY EVIDENCE

The Tenants rely primarily on contemporaneous emails exchanged directly with the Respondent at or near the time of the events. These communications were not prepared for the purpose of litigation and are corroborated by photographs and video recordings. The chronology demonstrates a consistent pattern of complaints rather than isolated incidents. The documentary record was created months before any litigation commenced and therefore carries significant indicia of reliability. Where any later testimony conflicts with these contemporaneous communications, the Tenants submit that the documentary record should be preferred.

XV. ANTICIPATED POSITION OF THE RESPONDENT

The Tenants anticipate that the Respondent may argue that a contractor attended, that the mould resulted from tenant conduct (bathroom humidity or insufficient use of the fan), or that he otherwise acted reasonably. The Tenants respond:

- (a) attendance is not the test — effectiveness and reasonableness are (Onyskiw) — and the condition spread after the attendance occurred;
- (b) the water intrusion through the wall arises from the building itself and is not attributable to ordinary tenant use; the electrical fault was itself attributed by the Respondent to water exposure;
- (c) the location and character of the mould — established growth concentrated at the ceiling–wall junction (Exhibit M-1) — is consistent with repeated moisture exposure and inconsistent with a single, isolated condensation event;
- (d) there is no expert or inspection evidence before the Board establishing that the conditions were caused by tenant misuse, and the Respondent produced no documentation of any investigation or remediation (see Section XI);
- (e) even if ventilation was a contributing factor, the Respondent remained responsible for ensuring that the unit met the maintenance obligations imposed by the Act; and
- (f) to the extent the Respondent alleges that the Tenants caused damage to the rental unit (section 34 of the Act), any deterioration of the walls and ceiling is attributable to the documented and unremedied water intrusion — the Respondent’s own breach — and any such allegations of undue damage are denied. Section 34 extends only to undue damage caused by the wilful or negligent conduct of the tenant; it does not extend to ordinary wear and tear, nor to deterioration caused by the landlord’s failure to repair.

XVI. FINDINGS REQUESTED

The Tenants request findings that:

1. the Respondent was responsible under section 20 of the Act for maintaining the rental unit in a good state of repair and fit for habitation;
2. the Respondent received notice of the maintenance deficiencies affecting the rental unit, and acknowledged the existence of the mould in writing;
3. the rental unit was not maintained in a good state of repair, in respect of the water intrusion and resulting moisture deterioration and mould;
4. the Respondent failed to take reasonable and effective steps to remedy the water intrusion within a reasonable period of time;
5. the unrectified maintenance deficiencies caused the Tenants to end the tenancy and incur the costs of relocating; and
6. the Respondent breached section 20 of the Act.

XVII. REMEDIES SOUGHT

The Board's remedial powers on an application alleging a breach of section 20 are set out in section 30 of the Act. As Interpretation Guideline 5 confirms, these include ordering an abatement of rent, ordering the landlord to pay the cost of repairing or replacing property damaged, destroyed or disposed of as a result of the breach, compensating other reasonable out-of-pocket expenses, and, in an appropriate case, awarding general damages for breach of the tenancy agreement. Consistent with *Toronto Community Housing Corp. v. Vlahovich* (Div. Ct.), all amounts claimed relate to the one-year period preceding the filing of this application.

(A) **Rent abatement (s. 30).** The Tenants seek an abatement of no less than 40% of the monthly rent of \$1,800 for the approximately six-month period from November 2025 to the end of the tenancy on April 30, 2026 — a minimum of \$4,320 — or such greater amount as the Board finds appropriate having regard to the nature, duration, and effect of the breach (Guideline 5).

As Guideline 5 explains, an abatement “is compensation to the tenant for the inadequate state of repair and any inconvenience or actual loss of use of the rental unit or common facilities.” The amount sought is consistent with — indeed conservative against — the Board's jurisprudence in mould and water-intrusion cases. In TEL-00588-09 (Re), 2009 CanLII 79028 (ON LTB), a 30% abatement was ordered where the landlord “knew about the mold and did not correct the problem in a timely manner.” In TET-12602-11-RV (Re), 2011 CanLII 27135 (ON LTB), a 30% abatement was ordered where deficiencies and mould went unremedied for two months. In TEL-14199-11 (Re), 2011 CanLII 34801 (ON LTB), a 40% abatement was ordered notwithstanding that the public health inspector had found only a minimal amount of mould, the Member observing that the presence of mould in a rental unit is “a serious health issue.” And in SWL-37003-12 (Re), 2012 CanLII 74721 (ON LTB), a 50% abatement was ordered where mould was present in multiple areas together with concurrent maintenance issues including water damage and electrical deficiencies — the fact pattern most analogous to this application, where the moisture conditions affected four areas of the unit and were accompanied by an unresolved electrical fault. In similar mould and water cases, therefore, abatements between 30% and 50% have been ordered. The Tenants' claim of 40% sits squarely within that range: it matches the award in TEL-14199-11, where the mould was minimal — and the conditions here were not minimal — while remaining below the 50% ordered in SWL-37003-12 on the most closely analogous facts.

- (B) **Replacement of damaged property (s. 30; Guideline 5).** The cost of replacing the Tenants' property damaged by the water intrusion and mould — including jackets and other garments stored in the affected closet, visible in situ in Exhibit V-3, which the Tenants were required to dispose of as a result of the damage — in an amount currently estimated at \$500.00, particularized item-by-item at Schedule C. Section 30 and Guideline 5 expressly extend to property “damaged, destroyed or disposed of as a result of the landlord’s breach.”
- (C) **Out-of-pocket expenses (s. 30; Guideline 5).** Reasonable out-of-pocket expenses incurred as a result of the breach, including the acquisition and operation of a dehumidifier, increased electricity consumption, and cleaning supplies, in an amount currently estimated at \$275.00, particularized at Schedule C.
- (D) **Moving costs and rent differential.** For the reasons set out in Section XII, the termination of the tenancy and the Tenants' relocation flowed directly from the unrectified breach. The Tenants claim moving expenses currently estimated at \$650.00 and a rent differential of \$125.00 per month for a period of twelve months (\$1,500.00 in total), supported by the lease for the replacement unit and moving invoices. The moving claim is corroborated by the Tenants' banking records, which show U-Haul truck rental and related transport charges, and a \$125.00 e-transfer to the individual who assisted with the move, all incurred on the move-out day, April 30, 2026 (Exhibit F-1).
- (E) **General damages.** The Board has jurisdiction to award general damages for breach of the tenancy agreement: Guideline 5, and *Mejia v. Cargini* (2007), 222 O.A.C. 74 (Div. Ct.), in which the Divisional Court confirmed the Tribunal's authority to award compensatory damages arising from a breach of the landlord's contractual or statutory obligations and awarded \$4,000 in general damages in addition to the abatement ordered. The Tenants seek general damages of \$2,000 for the sustained inconvenience, discomfort, and distress described in Section XIII — the daily cleaning and monitoring, the persistent damp odour, the loss of ordinary use of affected areas, and the anxiety of bathing beneath visible mould for months — losses distinct from the loss of use of the unit compensated by the abatement, such that no double recovery arises.
- (F) **Lost wages (s. 30; Guideline 5).** Reimbursement of the wages lost by the Applicant Joseph Oladimeji, who was required to take two days of unpaid leave from employment (April 30 and May 1, 2026, totalling 16 hours) in order to complete the move necessitated by the unrectified conditions, in the amount of 16 hours × \$18.75 per hour, totalling \$300.00, supported by the employer's approved leave record (Exhibit F-2).
- (G) **Application filing fee.** Reimbursement of the application filing fee paid to the Board, in accordance with the Board's usual practice of ordering the unsuccessful party to pay the application fee to the successful party (Interpretation Guideline 3).

(H) **Costs.** The Tenants reserve the right to seek costs pursuant to Rule 23 and Interpretation Guideline 3 should the Respondent engage in conduct warranting such an award.

(I) **Further relief.** Such further and other relief as the Board considers just.

For convenience, the amounts claimed are summarized as follows:

Remedy	Amount
Rent abatement ($40\% \times \$1,800 \times 6$ months) — minimum	\$4,320.00
Replacement of damaged property*	\$500.00
Out-of-pocket expenses*	\$275.00
Moving costs*	\$650.00
Rent differential ($\$125.00 \times 12$ months)	\$1,500.00
General damages	\$2,000.00
Lost wages (16 hrs unpaid leave $\times$ \$18.75)	\$300.00
Application filing fee	\$53.00
Costs (Rule 23 / Guideline 3) — only if the Respondent's conduct warrants	Reserved
TOTAL CLAIMED	\$9,598.00

* Current estimates; to be particularized through receipts and records in the Tenants' disclosure.

XVIII. CONCLUSION

The documentary evidence establishes recurring water intrusion, visible mould, actual notice, the Respondent's written acknowledgement, ineffective remediation, and a tenancy ultimately terminated because the conditions were never resolved. The Respondent was required by section 20 of the Act to maintain the rental unit in a good state of repair and fit for habitation. The evidence demonstrates that this obligation was not met. The Tenants therefore request that the Board grant the findings and remedies sought.

ALL OF WHICH IS RESPECTFULLY SUBMITTED.

Dated: _____, 20____

Jean-Francois Demers, Licensed Paralegal
LSO #P22020 — Legal Assist Paralegal Services
Paralegal for the Applicants (Tenants)

TO:

Damian Cordaie, B.A., Licensed Paralegal
LSO #P15586 — Cordaie Paralegal Services
180 Northfield Dr. West, Unit 4, Waterloo, Ontario N2L 0C7
Paralegal for the Respondent (Landlord)

AND TO:

Landlord and Tenant Board

SCHEDULE A — INDEX OF EXHIBITS

The following documents are referred to in these submissions. Email times are as shown in the parties' correspondence.

Exhibit	Description	Date	Source
T-1	Email, Landlord to Tenant — “We are responsible for fixing appliances”	Jan 14, 2025	Disclosure
E-1	Email, Tenant to Landlord — kitchen sockets stopped working	Mar 25, 2025 9:06 pm	Disclosure
E-2	Email, Landlord to Tenant — outlets turn off if exposed to water; reset button	Mar 27, 2025 8:08 am	Disclosure
E-3	Email, Tenant to Landlord — reset did not resolve; outlet has no reset	Sep 23, 2025 11:15 pm	Disclosure
W-1	Email, Tenant to Landlord — water coming from the wall; recurring since March	Nov 7, 2025 9:16 pm	Disclosure
W-2	Video — active water intrusion through interior wall (IMG_6441.mp4), attached to W-1	Nov 7, 2025	Disclosure
W-3	Email, Tenant to Landlord — condition “all over”; dehumidifier running	Nov 7, 2025 9:20 pm	Disclosure
W-4	Email, Landlord to Tenant — “I will try to find someone...”	Nov 8, 2025 9:53 am	Disclosure
W-5	Email, Tenant to Landlord — spread to living room and closet; mould in washroom	Nov 10, 2025 5:04 pm	Disclosure
W-6	Photograph — horizontal water staining tracks on interior wall (IMG_9768.jpeg)	During tenancy (undated)	Disclosure
W-7	Video — vertical drip-stain trails on affected wall	During tenancy (undated)	Disclosure
V-1	Video — unit walkthrough (kitchen, hallway, rooms)	Various dates, 2025–2026	Disclosure
V-2	Video — kitchen countertop and backsplash condition	Various dates, 2025–2026	Disclosure
V-3	Video — affected closet: garments stored inside; stained trim; water-stain trails on adjacent wall	During tenancy (undated)	Disclosure
M-1	Photograph — mould growth at washroom ceiling–wall junction above shower, attached to W-5	Nov 10, 2025	Disclosure
M-2	Email, Tenant to Landlord — contractor (Ben) attended re leak; mould worsening	Nov 10, 2025 7:05 pm	Disclosure
M-3	Email, Landlord to Tenant — Ben to return for bathroom; fan / “further mold”	Nov 12, 2025 2:14 pm	Disclosure
A-1	Email, Tenant to Landlord — oven burner / error code	Feb 16, 2026 11:54 am	Disclosure
A-2	Photograph / video — oven error (IMG_7964.jpeg, IMG_7965.mov), attached to A-1	Feb 16, 2026	Disclosure

Exhibit	Description	Date	Source
A-3	Email, Landlord to Tenant — troubleshooting	Feb 16, 2026 2:20 pm	Disclosure
A-4	Email, J. Oladimeji to Landlord — contractor attended re burner Feb 17 (repair disputed; entry objection)	Feb 17, 2026 4:51 pm	Disclosure
N-1	Form N11 — Agreement to End the Tenancy, effective April 30, 2026	March 2026	Disclosure
L-1	Residential Tenancy Agreement (Standard Form of Lease) — rent \$1,800/month; e-signed by all parties	Jan 14, 2025	Disclosure
F-1	Banking records — U-Haul rental, transport charges, and \$125 e-transfer to mover (Andre)	Apr 30, 2026	Disclosure
F-2	Employer leave record — J. Oladimeji, 2 days unpaid leave for the move (16 hrs)	Apr 30 – May 1, 2026	Disclosure
G-1	Photograph — water staining at ceiling-wall junction above a SECOND closet (spread; distinct from V-3 closet)	Feb 20, 2026 11:16	Disclosure
G-2	Photograph — mould-removal / cleaning product used by Tenants	Feb 20, 2026 11:16	Disclosure
G-3	Photograph — staining trails down the door frame	Mar 20, 2026 1:53 pm	Disclosure
G-4	Photograph — staining on door frame and adjacent wall	Apr 4, 2026 9:48 pm	Disclosure
G-5	Photograph — staining consistent with water on the wall surface	Apr 4, 2026 9:50 pm	Disclosure

SCHEDULE B — CHRONOLOGY

The following chronology is drawn from the parties' contemporaneous correspondence (Schedule A).

Date	Event
Jan 14, 2025	Lease e-signed by all parties (L-1). Same day, Landlord acknowledges responsibility for repairs: "We are responsible for fixing appliances" (T-1).
Feb 1, 2025	Tenancy commences; monthly rent \$1,800.
~Mar 2025	First signs of water at the interior wall, observed and cleaned by the Tenants (per W-1).
Mar 25, 2025	Tenant reports kitchen sockets stopped working (E-1).
Mar 27, 2025	Landlord: outlets turn off if exposed to water; press reset (E-2).
Sep 23, 2025	Tenant reports the reset did not work — outlet has no reset (E-3).
Nov 7, 2025	Tenant reports water coming from the wall, recurring since move-in; video provided (W-1, W-2); condition "all over" despite dehumidifier (W-3).
Nov 8, 2025	Landlord: "I will try to find someone to come this weekend..." (W-4).
Nov 10, 2025	Water has spread to living room and closet; mould reported in washroom; photo provided (W-5, M-1). Contractor (Ben) attends re leak; mould worsening (M-2).
Nov 12, 2025	Landlord acknowledges mould; Ben to return for bathroom; advises use of fan re "further mold" (M-3). No documented repair or remediation follows.
Feb 16, 2026	Tenant reports oven burner / error code; photo and video (A-1, A-2). Landlord provides troubleshooting (A-3).
Feb 17, 2026	Contractor attended regarding the burner; effectiveness of the repair disputed (A-4).
Mar 2026	Parties sign Form N11 agreement to end the tenancy (N-1).
Feb 20, 2026	Dated photographs — staining at ceiling above closet; Tenants self-cleaning with a mould product (G-1, G-2).
Mar 20, 2026	Dated photograph — staining trails down the door frame (G-3).
Apr 4, 2026	Dated photographs — staining / water on door frame and wall (G-4, G-5).
Apr 30 – May 1, 2026	Move-out; J. Oladimeji takes 2 days unpaid leave (F-2); U-Haul and mover paid (F-1).
Apr 30, 2026	Tenancy ends; Tenants vacate and relocate.

— END OF SUBMISSIONS —

SCHEDULE C — PARTICULARS OF MONETARY LOSS

The following particularize the amounts claimed at Section XVII(B) and (C). The replacement values in Part 1 are good-faith estimates based on the current cost of comparable garments; the Tenants' original receipts are no longer available, and the Tenants will testify to the items they owned, stored in the affected closet, and disposed of as a result of the damage. The out-of-pocket figures in Part 2 are likewise good-faith estimates, to be supported by the Tenants' testimony and any receipts located before the hearing.

Part 1 — Replacement of Damaged Property (Section XVII(B))

Item	Estimated replacement cost
Winter jacket	\$150.00
Rain / outer jacket	\$75.00
Hoodie / sweater	\$50.00
Dress shirt(s)	\$40.00
Other clothing / garments (closet)	\$185.00
TOTAL (estimated)	\$500.00

Part 2 — Out-of-Pocket Expenses (Section XVII(C))

Item	Estimated amount
Dehumidifier (purchase)	\$150.00
Increased electricity (operating the dehumidifier)	\$75.00
Cleaning supplies	\$50.00
TOTAL (estimated)	\$275.00

Note: lost wages (Section XVII(F)) — 16 hours of unpaid leave at \$18.75 per hour, totalling \$300.00, supported by the employer's approved leave record (Exhibit F-2).